

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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Laquan Heyward and Devon Vines,	:	
	:	Index Number:
Plaintiffs,	:	Date Purchased:
	:	Date Filed:
-against-	:	SUMMONS
City of New York, New York City Police Department,	:	
Police Officer Vincent Figueroa, Shield 4456 of the 44	:	
Precinct and New York City Police Officers John Doe,	:	
	:	Plaintiff Vines'
	:	residence is:
	:	739 Arnou Avenue
	:	Bronx, NY 10467
Defendants	:	
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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: December 7, 2022,
New York, NY

Yours, etc.,

Jason Steinberger

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
505 Eighth Avenue
Suite 701
New York, NY 10018
(646) 256-1007

To: City of New York

New York City Police Department

Police Officer Vincent Figueroa, Shield 4456 of the 44 Precinct

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X		
Laquan Heyward and Devon Vines,	:	
	:	
Plaintiffs,	:	
	:	VERIFIED COMPLAINT
-against-	:	
	:	
City of New York, New York City Police Department,	:	
Police Officer Vincent Figueroa, Shield 4456 of the 44	:	
Precinct and New York City Police Officers John Doe,	:	
	:	
Defendants.	:	
-----X		

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Laquan Heyward, (hereinafter referred to as “HEYWARD”) resides in Bronx County, State of New York.
2. That at all times hereinafter mentioned, Plaintiff Devon Vines, (hereinafter referred to as “VINES”) resides in Bronx County, State of New York.
3. That at all times hereinafter mentioned, Police Officer Vincent Figueroa, Shield 4456 of the 44 precinct (hereinafter referred to as “FIGUEROA”) was employed by the New York City Police Department.
4. That at all times hereinafter mentioned, the New York City Police Officers John Doe, the officers involved in the arrest of Plaintiffs, (hereinafter referred to as “DOES”) were employed by the New York City Police Department.

5. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

6. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

7. On or about January 26, 2022 notice required by Municipal Law 50-E was given to City of New York, by personal service as to all Plaintiffs. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

8. On or about May 20, 2022 a hearing required by Municipal Law 50-H was conducted for Plaintiffs. At said hearing all Plaintiffs testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

9. That on or about July 16, 2020 at approximately 6:00 AM in the vicinity of 115 Wright Street, Staten Island, NY, HEYWARD was at home when he was handcuffed and arrested by FIGUEROA and DOES.

10. That on or about July 16, 2020 at approximately 6:00 AM in the vicinity of 739 Arnow Avenue, Bronx NY, VINES was at home when he was handcuffed and arrested by FIGUEROA and DOES.

11. That at no time had Plaintiffs engaged any unlawful or illegal activity.

12. That at no time did any Plaintiff possess or exercise custody and control over a gun.

13. That at no time had Plaintiff engaged in any conduct, including acting in concert with anyone who engaged in conduct, that caused the murder of an another individual.
14. That prior to the arrest of HEYWARD and VINES, FIGUEROA and DOES had exculpatory evidence that showed that neither HEYWARD nor VINES participated in any way in the murder of another individual.
15. That after Plaintiffs were arrested they were each taken to the 44 precinct.
16. That while at the 44 precinct, each of the Plaintiffs were subjected to a search and that nothing of an illegal or unlawful nature was recovered.
17. That while at the 44, Plaintiffs were placed into a cell with numerous other males.
18. That after being held at the 46 precinct for several hours, Plaintiffs were each transported to Central Booking, located at 215 East 161 Street, Bronx NY.
19. That while inside of Central Booking, Plaintiffs were forced to remain inside of a holding cell with numerous other people.
20. That on or about July 17, 2020, each of the Plaintiffs were arraigned in Bronx County Criminal Court and charged with Murder in the Second Degree and related offenses.
21. That at the arraignment, each Plaintiff was remanded to the custody of the New York City Department of Corrections.
22. That HEYWARD remained in custody in the New York City Department of Corrections until August 26, 2020.
23. That VINES remained in custody in the New York City Department of Corrections until March 11, 2021.

24. That between July 17, 2020 and January 24, 2022 Plaintiffs each made numerous court appearances until each of the criminal cases against them were dismissed by the Honorable Martin Marcus of the Bronx Supreme Court.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

25. Plaintiff HEYWARD repeats, reiterates and realleges the allegations contained in paragraphs 1 through 24 as if more fully stated herein at length.

26. That Defendants acted with actual malice toward Plaintiff HEYWARD and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

27. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

28. That as a result of the actions by Defendants, Plaintiff HEYWARD was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

29. That as a result of the Defendants' actions, Plaintiff HEYWARD has been unable to sleep.

30. That as a result of the Defendants actions, Plaintiff HEYWARD was forced to miss multiple days of work.

31. That as a result of the Defendants' actions Plaintiff HEYWARD sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

32. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 31, as if more fully stated herein at length.

33. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff HEYWARD as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

34. Defendants having no lawful authority to arrest Plaintiff HEYWARD, did, nevertheless, unlawfully arrest Plaintiff HEYWARD with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus, Plaintiff HEYWARD is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST DEFENDANTS

35. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 34 as if more fully stated herein at length.

36. Defendants conspired to violate Plaintiff VASQUEZ's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff HEYWARD is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST DEFENDANTS

37. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 36, as if more fully stated herein at length.

38. Plaintiff HEYWARD was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff HEYWARD to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff HEYWARD by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of HEYWARD. Plaintiff HEYWARD is thus entitled to compensatory and exemplary damages.

39. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff HEYWARD by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

40. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff HEYWARD having known that there was exculpatory evidence showing that he did not commit a crime and despite such, he was arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

41. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 42, as if more fully stated herein at length.

42. At all times pertinent hereto, FIGUEROA and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

43. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that FIGUEROA and DOES committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

44. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 43, as if more fully stated herein at length.

45. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff HEYWARD. Plaintiff HEYWARD is thus entitled to compensatory exemplary damages.

46. That the City of New York and New York City Police Department were aware that FIGUEROA was the subject of three (3) Civilian Complaint Review Board complaints and yet, they continued to employ FIGUEROA.

47. That the City of New York and New York City Police Department were aware that FIGUEROA was the subject of a civil rights lawsuit, Francisco Lopez v. City of New York, et al., index number 301503/2016 in Bronx County Civil Supreme Court and yet they continued to employ FIGUEROA.

48. That the City of New York and New York City Police Department were aware that FIGUEROA was the subject of a civil rights lawsuit, Robert Sanchez v. City of New York, et al., index 305600/2013, Bronx County Civil Supreme Court and yet they continued to employ FIGUEROA.

AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

49. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 48, as if more fully stated herein at length.

50. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff HEYWARD.

51. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff HEYWARD.

52. Upon information and belief, the City of New York and New York City Police Department maintained a policy of arresting an individual they believed had knowledge of a crime and arrested that individual for such crime, knowing he was innocent, so he could be

coerced into providing information about the crime or the real perpetrator of the crime. This policy resulted in a deliberate disregard for the statutory and constitutional rights of Plaintiff HEYWARD.

AS AND FOR AN EIGHTH CAUSE OF ACTION AS AGAINST DEFENDANTS

53. Plaintiff VINES repeats, reiterates and realleges the allegations contained in paragraphs 1 through 52 as if more fully stated herein at length.

54. That Defendants acted with actual malice toward Plaintiff VINES and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff VINES.

55. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

56. That as a result of the actions by Defendants, Plaintiff VINES was traumatized and fears for his physical safety when he sees and encounter members of the New York City Police Department from that day and onward.

57. That as a result of the Defendants' actions, Plaintiff VINES has been unable to sleep.

58. That as a result of the Defendants' actions, Plaintiff VINES was forced to miss multiple days of work.

59. That as a result of the Defendants' actions Plaintiff VINES sustained damage to his persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDANTS

60. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 59, as if more fully stated herein at length.

61. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of Plaintiff VINES as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

62. Defendants having no lawful authority to arrest Plaintiff VINES, did, nevertheless, unlawfully arrest Plaintiff VINES with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff VINES is entitled to both compensatory and exemplary damages.

AS AND FOR A TENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

63. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 62, as if more fully stated herein at length.

64. Defendants conspired to violate Plaintiff VINES's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus, Plaintiff VINES is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR AN ELEVENTH CAUSE OF ACTION AS DEFENDANTS

65. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 64, as if more fully stated herein at length.

66. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff VINES to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution of Plaintiff VINES by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff VINES. Plaintiff VINES is thus entitled to compensatory and exemplary damages.

67. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff HEYWARD by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

68. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff HEYWARD having known that there was exculpatory evidence showing that he did not commit a crime and despite such, he was arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A TWELFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

69. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 68, as if more fully stated herein at length.

70. At all times pertinent hereto, FIGUEROA and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

71. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that FIGUEROA and DOES committed within the scope of his employment.

AS AND FOR A THIRTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT

72. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 71, as if more fully stated herein at length.

73. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff VINES. Plaintiff VINES is thus entitled to compensatory exemplary damages.

74. That the City of New York and New York City Police Department were aware that FIGUEROA was the subject of three (3) Civilian Complaint Review Board complaints and yet, they continued to employ FIGUEROA.

75. That the City of New York and New York City Police Department were aware that FIGUEROA was the subject of a civil rights lawsuit, Francisco Lopez v. City of New York, et al., index number 301503/2016 in Bronx County Civil Supreme Court and yet they continued to employ FIGUEROA.

76. That the City of New York and New York City Police Department were aware that FIGUEROA was the subject of a civil rights lawsuit, Robert Sanchez v. City of New York, et al.,

index 305600/2013, Bronx County Civil Supreme Court and yet they continued to employ FIGUEROA.

AS AND FOR A FOURTEENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

77. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 76, as if more fully stated herein at length.

78. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff VINES.

79. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff VINES.

80. Upon information and belief, the City of New York and New York City Police Department maintained a policy of arresting an individual they believed had knowledge of a crime and arrested that individual for such crime, knowing he was innocent, so he could be coerced into providing information about the crime or the real perpetrator of the crime. This policy resulted in a deliberate disregard for the statutory and constitutional rights of Plaintiff VINES.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton conduct of Defendants' actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton conduct of Defendants' actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful conduct of the Defendants' actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the eighth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the ninth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of

this court and in excess of all inferior courts owing to the willful and wanton conduct of Defendants' actions.

On the tenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton conduct of Defendants' actions.

On the eleventh cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful conduct of the Defendants' actions;

On the twelfth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the thirteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the fourteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

Jason Steinberger
Jason A. Steinberger, Esq.
Attorney for Plaintiffs
505 Eighth Avenue
Suite 701
New York, NY 10018
(646) 256-1007

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the Plaintiff is because the Plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the Plaintiff, review of records and documents within affirmant's possession.

Affirmed: December 7, 2022

Jason Steinberger
Jason A. Steinberger